

**NZ Boxer Ltd (Parent company) Credit account and Consignment stock supply agreement for commercial operators.**

As a Claro NZ wholesale /Credit account and Consignment customer the below document are the terms and conditions of the Claro NZ Credit account and Consignment stock supply scheme.

This Agreement is Between NZ Boxer Ltd (parent company) hereby further referred to as Claro NZ (direct subsidiary of NZ Boxer Ltd) and the below named Retailer or their assigned representative acting for and on behalf of the Retailer for a supply of Goods and Display Hardware at the Business premisses

Business name and Premises(full Address)

Retailer Name (printed)

Retailer Home Address

By signing the Credit Account and Consignment Agreement provided by Claro NZ the Retailer (Retailer) agrees to these terms and conditions contained within.

**DEFINITIONS**

*Agreement* means the Credit account and Consignment Agreement and these terms and conditions, together with all schedules referenced herein.

*Goods* mean all or any Goods ordered by The Retailer or Goods supplied or to be supplied to the Retailer by Claro NZ pursuant to this Agreement whether ordered through the Online stock management portal or via direct telephone or email contact. A full list detailing those Goods supplied as part of the consignment can be found at [www.claronz.com](http://www.claronz.com). (Sign in-go to consignment stock category).

*Display Hardware* means Display, shelving, and other Hardware supplied by Claro NZ to aid the Retailer in Displaying and selling Claro NZ supplied Goods.

*Price* means the price payable by the Retailer to Claro NZ for the Goods on sold or purchased under, this agreement, all prices are exclusive of GST unless otherwise stated.

*Premises* means the premises or multiples of which the retailer has elected to engage Claro NZ to locate Goods and Display Hardware at.

*Sold Goods* or Goods means those Goods that are resold by the Retailer in the ordinary course of its business.

*Online stock management* portal means the online stock management portal made available to the retailer by Claro NZ at [www.claronz.com](http://www.claronz.com). Upon log-in to the retailers account and Consignment Category it shows the type and number of Goods held at each Premises.

*Stock Reconciliation Date* means the date(s) or schedule that the Online stock management portal must be entered and updated by the Retailer to reflect the Goods sold /held on consignment.

*Non Merchantable Goods* means Goods that have been in the possession of the retailer and for whatever reason have been damaged or soiled, etc. rendering them non-saleable.

*Merchantable Goods* refers to Goods Returned to Claro NZ at the end of season goods change over Return or returned at agreement termination.

## **1 APPOINTMENT AND TERM**

- Subject to the terms and conditions set out in this Agreement, Claro NZ appoints the Retailer as a non-exclusive reseller of the Goods.
- This Agreement shall commence on the Commencement date described in the Consignment Agreement, and continue until terminated in accordance with clause 15

## **2 INITIAL SUPPLY**

- On or about the Commencement date, Claro NZ will supply the Retailer an account and access to the Online stock management portal where the Goods to be supplied along with any Display Hardware will be detailed.
- Claro NZ will promptly deliver the Goods along with any Display Hardware as detailed in the Consignment stock Schedule.
- Claro NZ will endeavour to personally deliver and install the Goods and any Display Hardware included. Where Claro NZ is unable to personally deliver the Goods and any Display Hardware the Retailer shall erect and install the Display Hardware, and Display the Goods, at the Premises. Any deficit of Goods or Display Hardware must be notified to Claro NZ within 24 hrs of delivery receipt.

## **3 SALES**

- Claro NZ will provide an Online stock management portal for easy quick and efficient stock controls and management.
- Claro NZ will seek to Maximise the potential of sales the retailer may perform by providing both quality Goods and an efficient stocking mechanism backed up by large warehousing and stock supplies.
- Subject to the terms and conditions of this Agreement, the Retailer shall use its best endeavours to maximize sales of the Goods from the Premises.
- The Retailer shall not do anything that may adversely affect the name, brand and reputation of Claro NZ and its subsidiaries or brands.
- The Retailer may advertise or market the Goods with an association to Claro NZ's brands upon first gaining

written approval.

- Claro NZ will from time to time visit the premises with a view to ensuring all general public customer needs in Claro NZ goods field are being met.

#### **4 RESTOCKING PROCESS**

- Claro NZ shall establish the Online stock management portal on or about the Commencement Date of this agreement
- The Retailer shall solely utilized the Online stock management portal to record all Sold Goods within a period of not greater than by the 15<sup>th</sup> of each calendar month or at any other time requested by Claro NZ from time to time. (During summer months restocking may be required every two weeks to maximise you sales potential)
- In the event no Goods have been sold since the previous 15<sup>th</sup> of the prior month then the retailer is still required to utilize the Online stock management portal to notify Claro NZ (process the “No Goods sold item as a cart item”).
- Where sold Goods to be replenished by Claro are out of stock, or otherwise unavailable to be replenished then at its sole discretion, Claro NZ may either reduce the Goods supplied to the Retailer or provide alternative Goods as replacement of the unavailable Goods, Claro NZ will notify the retailer accordingly. All Sold goods whether replenished or not are to be paid for by the retailer as normal.
- Claro NZ may modify the Goods being stocked by the Retailer via the Online stock management portal. Claro NZ will notify the Retailer in the event of any such change.
- The retailer will Guard and protect their access credentials to the Claro NZ management portal. it will be deemed that anybody Using the retailers access credentials to access the Claro NZ stock management portal will be doing so on behalf and with the full authority of the retailer.

#### **5 AUDIT**

- Claro NZ and/or its agent(s) may attend and inspect the Goods and Display Hardware during normal working hours and without prior notice for the purposes of ensuring the Retailer's compliance with this Agreement. The Retailer shall provide all reasonable access for Claro NZ and/or its agent(s) to access the Premises and any other location where the Goods may be stored, and to provide all other reasonable assistance requested by Claro NZ, without delay.
- The retailer accepts and understands it is essential that restocking Goods is kept up to date, on the Claro NZ Online stock management portal. Having empty shelves means not maximising potential.

#### **6 DELIVERY, RISK, AND TITLE**

- Claro NZ will initially arrange the delivery of all Goods and Display Hardware, at Claro NZs cost. Delivery will primarily be by an Claro NZ representative or by a courier. Where delivery is by Courier the Retailer will within 48 hrs erect the provided Display Hardware and display the Goods for sale to the general Public.
- Delivery of the Goods and Display Hardware is deemed to have occurred at the time the Goods and Display Hardware are received by the Retailer or their representative.

- Any delivery time provided by Claro NZ shall be an estimate only.
- Upon delivery the Retailer shall notify Claro NZ in writing in respect of any damaged, defective or inconsistency in respect of the Goods delivered. This to be done within 24 hours of the Delivery Date and time. Failure to do so within will deem the Goods as accepted by the Retailer.
- On Delivery, the Retailer will take responsibility for the Goods and will carry the full risk of liability with no recourse to Claro NZ. The Retailer is responsible for adequately insuring the Goods and Display Hardware from Delivery point.
- The Retailer agrees that until the Retailer has fully paid for the Goods and any other amounts owing by the Retailer to Claro NZ under this Agreement Claro NZ retains ownership of the Goods
- Claro NZ and its agents shall have the right to enter the premises where the Goods are being stored at any reasonable time (including within 20 working days after the expiry or termination of this Agreement) to inspect/collect the Goods, and where the Retailer is in breach of this agreement remove the Goods from the Retailer's possession; and
- If the Goods are stored at the premises of a third party, the Retailer will immediately upon demand from Claro NZ obtain the consent of that third party for Claro NZ's entry onto the premises for this purpose.
- The Retailer shall pay all costs incurred by Claro NZ in respect of such entry and repossession, including all legal costs where it is deemed the retailer is in breach of this agreement.

## **7 PRICE AND PAYMENT**

- After each Claro NZ agent audit or Retailer Goods replenishment order Claro NZ will issue an invoice to the Retailer for the Price of all Goods Sold since the date of the last invoice, plus all applicable delivery costs and any other costs permitted to be charged by Claro NZ pursuant to this Agreement.
- All pricing Displayed on the Online stock management portal is in New Zealand dollars, and unless otherwise stated is exclusive of GST
- Claro NZ will not vary the retailers Consignment Goods supplied Prices unless by giving five working days notice to the Retailer. In any case any price changes will not apply to previously sold Goods yet to be declared sold by the Retailer.
- The Retailer shall pay all invoices issued by Claro NZ by the 20<sup>th</sup> of the following month.
- All payments pursuant to this Agreement shall be made in cleared funds, free of any set-off or deduction. Claro NZ may allocate the payment to amounts owing at its sole discretion.

## **8 FAILURE TO COMPLY**

- If the Retailer fails to pay any amounts owing by the due date, or is otherwise in breach of this Agreement, Claro NZ may, in its sole discretion, without prejudice to, and in addition to, any other rights and remedies do any one or more of the following : suspend delivery of any Goods or terminate (in whole or in part) the supply of Goods, or this Agreement by emailing notice to the Retailer; and
- charge interest at a rate calculated as 10% above the New Zealand base lending rate on the amount owing, calculated on a daily basis until Claro NZ receives payment in full and

- appoint legal counsel to act on its behalf in pursuit of recovering the amounts owing, appoint a collections agent or other third parties to collect the amounts owing, all costs and expenses associated with such actions including legal costs as between solicitor and client, shall where deemed to be covered under this agreement and permissible under New Zealand Law be paid by the Retailer in addition to all amounts owing.

## 9 WARRANTIES

- To the extent permitted by applicable law, the parties agreement Between Claro NZ and the Retailer is for a business purposes, and the Consumer Guarantees Act 1993 (CGA) does not apply.
- Exceptions: Claro NZ warrants that where its Goods are being sold by the retailer to the general public Claro NZ accepts the Consumer Guarantees Act 1993 is in force and warrants to assist, reimburse the retailer regarding any warranty claims made to the retailer for Claro NZ Goods where the Consumer Guarantees Act 1993 is enforceable between Retailer and General Public.
- Any product being returned to the retailer for refund through a warranty claim must be accompanied by the original customer purchase invoice, fault description, the purchasing customer contact details as well as fault images emailed to Claro NZ.

## 10 LIMITATION OF LIABILITY

- Except as otherwise provided in this Agreement, Claro NZ will be under no liability whatsoever to the Retailer for any indirect loss, consequential loss, fines, loss of profit, loss of bargain, loss of business opportunity, or exemplary damages suffered by the Retailer or any other person, arising out of or flowing from this Agreement, whether contemplated by this Agreement or not, and whether actionable in contract, tort (including negligence), equity or otherwise. In addition to the above, Claro NZ shall not be liable to the Retailer or any third party to the extent that any loss or damage was caused or contributed to by the Retailer's negligence, or that of the Retailer's employees, representatives, agents, or third parties.
- In the event that, Claro NZ is found liable for any loss or damages, including the loss or damages set out above, such liability will be limited to the Price paid or to be paid by the Retailer for the Goods under this Agreement to which the liability relates, and is inclusive of all claims made against Claro NZ by the Retailer arising from the same event or series of related or connected events

## 11 INTELLECTUAL PROPERTY

- The Retailer agrees and acknowledges that Claro NZ is the owner or licensee of all intellectual property rights related to the Goods manufactured by Claro NZ. The Retailer without written permission from Claro NZ will not use, distribute, duplicate, modify or otherwise alter the intellectual property of Claro NZ or a third party in respect of the Goods; (b) tamper with or remove any markings, trademarks, patent numbers, registration numbers or other indication of the source of origin of any
- remove or tamper with Goods descriptions as required by law which are placed by Claro NZ
- claim any rights, title or interests in or to the intellectual property in the Goods; or
- damage or otherwise endanger Claro NZ's, or any of Claro NZ's suppliers or licensors', intellectual property rights in the Goods.

## **12 CONFIDENTIALITY**

All intellectual property and other information belonging to a party which by designation or by its nature is intended to be treated as confidential will be confidential information for the purposes of this Agreement. Except as otherwise specified in this Agreement, or as otherwise required under law, neither party will without prior written consent of the other disclose any confidential information to any third party. To avoid doubt, confidential information includes but is not limited to the prices, profit margins, and the identity of Claro NZ's suppliers and/or Retailers. The confidentiality obligations under this provision survive the termination of this Agreement.

## **13 PERSONAL INFORMATION**

The Retailer agrees that Claro NZ can hold and use the Retailer's account information for purposes related to the Retailer's dealings with Claro NZ. If the Retailer is an individual, the Retailer has rights under the Privacy Act 1993 (or its successor legislation) to access any personal information that Claro NZ holds and to request the correction of such personal information. Claro NZ agrees that in the event of this agreement is terminated/closed and no funds are due under this agreement then at the retailers request all account information related to the retailer will be destroyed.

## **14 DISPUTE RESOLUTION**

The parties shall endeavour to resolve any disputes in relation to this Agreement and/or the supply of Goods between them cooperatively in the first instance, prior to seeking a resolution through the Courts. However, nothing in this clause prevents either party from seeking interlocutory or injunctive relief.

## **15 TERMINATION**

Claro NZ and/or the Retailer may terminate this Agreement without cause by giving the other party 10 working days written notice or earlier by Agreement between parties.

On termination or expiry of this Agreement:

- If the Retailer fails to pay any monies when due becomes insolvent, bankrupt, enters into liquidation, voluntary administration, or otherwise, is in breach of this Agreement, Claro NZ may (without prejudice to any other rights or remedies available to it) within five working days of notifying the Retailer to remedy the breach, and the Retailer failing to remedy the breach, suspend deliveries, refuse to supply further Goods and/or terminate this Agreement immediately and all outstanding monies owing under this Agreement to Claro NZ (if any), will immediately fall due and payable.
- Claro NZ or its agent will normally attend the retailers premises for collection of Goods and Display Hardware, If attendance is not possible then Claro NZ will supply the retailer with appropriate address labelled crating. The Retailer shall pack the Goods and Display Hardware owned by Claro NZ in a manner that makes it available for courier collection.
- Unless by agreement for earlier Claro NZ attendance or collection the retailer will make the Goods and Display Hardware available for collection no later than 12 days from the date of termination notice being sent. Failure of the retailer to make the Goods and Display Hardware available for collection will deem the Goods sold and billable to the retailer.
- Upon receipt of the returning Goods and Display Hardware, Claro NZ shall do a Goods and Display Hardware Audit and issue a final invoice in respect of any the Sold Goods. Only Goods that are in Merchantable Goods will be accepted may be returned.
- the Retailer shall pay the final invoice issued by Claro NZ immediately if in breach of this agreement in any way.

## 16 MISCELLANEOUS

- **Governing Law:** This Agreement shall be governed by the laws of New Zealand and the parties submit to the non-exclusive jurisdiction of the courts of New Zealand.
- **Notices:** Notices will be sufficiently given if posted or successfully transmitted by email to the intended recipient, Claro NZ is sales@nzboxer.com, the Retailer email is that used to access their account on the Online stock management portal.
- **At any point goods are returned to Claro NZ then only Merchantable Goods will be accepted. Non-Merchantable Goods will not be accepted (shop soiled or damaged Goods will be returned to the Retailer at cost and charged to the retailers account).**
- **Retailer will notify Claro NZ in writing of any changes to the Retailer's contact details.**
- **Variation:** Claro NZ may vary this Agreement at any time, by providing notice in writing to the Retailer, or posting the varied terms on its Website. The Retailer's continued ordering of Goods will deem the Retailer's acceptance of the varied terms. If the Retailer does not accept the varied terms, the Retailer may immediately terminate this Agreement by providing notice in writing to Claro NZ and the version of the terms and conditions immediately previous to the varied terms shall continue to apply to Goods ordered prior to the termination by the Retailer.
- **Assignment:** The Retailer shall not assign or otherwise transfer or encumber its rights or obligations under this Agreement except with the prior written consent of Claro NZ. Claro NZ can at any time assign or otherwise transfer, encumber or subcontract any of its rights and obligations under this Agreement to a third party.
- **Force majeure:** Neither party will be liable for delay or failure in the performance of any of the obligations imposed by this Agreement, except an obligation to pay money, provided that such failure is beyond their reasonable control.
- **Waiver:** A party will not have waived or be deemed to have waived any provision of this Agreement unless the waiver is in writing and signed by that party.
- **Survivorship:** Termination of this Agreement for any reason will not affect such rights and obligations of the parties as are intended to survive the termination.
- **No relationship:** This Agreement does not create any relationship of partnership, employment, agency, or joint venture between the parties.
- **Severability:** Should any part or provision of this Agreement be held unenforceable or in conflict with any applicable laws or regulations, the invalid or unenforceable part or provision will be replaced with a provision that accomplishes, to such extent as possible, the original business purpose of the part or provision in a valid and enforceable manner, and the remainder of the Agreement will remain binding on the parties.
- **Entire Agreement:** This Agreement constitutes the sole understanding of the parties and supersedes all prior understandings, written or oral, which will be of no further force or effect.
- **Counterparts:** This Agreement may be executed in counterparts (which may be electronic or facsimile copies) and all of which, when taken together constitute one document.

Note: Claro NZ operates a secure stand-alone digital base inventory for all stocks, stock levels are updated to the client portal **Claro NZ website** at regular intervals.

The below signatory confirms they have fully read and understand their obligations and agreement to the above NZ Boxer Ltd Consignment supply agreement for retailers and commercial operators.

Where application is for a Limited Company (enter all directors names)

Director or Authorised signatory/ Business Owner or Trader Signature: E-Sign

Full Name (Printed)

Photo ID/Driver Licence

Date: November 23, 2022

Time: 09:31

Ip Address: 78.175.51.246